2010 and, based on input received during that review, has recommended that the City Council adopt an AIP and pre-annexation zoning for only those two parcels that are necessary for construction of the PSE substation and the SE Douglas Street Right-of-Way, Parcel No. 3624079102 and that portion of Parcel No. 3624079091 that is located within the **City**'s urban growth area (hereafter, the "**Annexation Area**"). The **Annexation Area** is shown on **Exhibit 3** (*Annexation Area*).

G. The Snoqualmie Vicinity Comprehensive Plan land use designation for the **Annexation Area** is Planned Residential.

H. **PSE** desires annexation of the **Annexation Area** to develop an electrical transmission and distribution substation commonly referred to as the Mount Si Substation on a portion of the **Annexation Area** (collectively, "**Substation Area**"), together with transmission lines and associated setbacks and buffers to be located on other portions of the **PSE Property**. The **Substation Area** and Legal Description are identified in **Exhibit 4** *(Substation Area and Legal Description)* hereto. The Mount Si Substation is a necessary facility to serve existing and future growth in the City of Snoqualmie and Snoqualmie Valley as a whole. **PSE** intends to begin developing the **Substation Area** immediately following annexation and upon approval of permits required for construction. The **Substation Area** development will not add any population to the **City**, will not require extension of sewer utilities, and will only require street improvements, and extension of water utilities to the substation driveway.

I. The **Dutczak Property** is not part of the **PSE** ownership. However, **PSE** is seeking an easement across the **Dutczak Property** to accommodate construction of the transmission lines. **PSE** also intends to construct transmission lines across portions of the **PSE Property** located north of the **Dutczak Property**.

J. The Bonneville Power Administration ("BPA") already has easements ("**BPA Easements**") across portions of the **PSE Property** and the **Dutczak Property** for transmission line purposes, as shown on **Exhibit 5** *(BPA Easements and Line Corridor Area)*. Nothing in this Agreement is intended to impact the rights and obligations contained within that **BPA Easements**.

K. The **PSE Property** also contains property not needed or intended for the electrical substation or new transmission lines and their associated setbacks/buffers, and such additional land is to be designated for potential future development ("**Future Development Area**"). The **Future Development Area** is identified and legally described in **Exhibit 6** *(Future Development Area and Legal Description)*. Except for a small portion of the **Future Development Area** located on Parcel No. 3624079102, **PSE** is not seeking annexation of and does not intend to develop the **Future Development Area** at the same time as development of the **Substation Area**. Applicable Snoqualmie Vicinity Comprehensive Plan Annexation Policies recognize that the annexation and substation development proposed in the **Annexation Area** may proceed in advance of the annexation and annexation implementation planning required prior to development of the **Future Development Area**.

L. The **City** is considering annexation of the **Annexation Area** which is located within the **City**'s Urban Growth Area, in light of the public benefits associated with the annexation of the property, including assuring an adequate supply of electrical power to the **City**. The **City**'s agreement to the specific provisions of this Pre-Annexation Development Agreement are specifically based upon **PSE** being a publically-regulated utility and the fact that **PSE**'s proposed wetland, wetland buffer and stream buffer disturbance is limited to that amount necessary to install and maintain the electrical utility facilities.

M. The **City** has reviewed an Expanded Environmental Checklist for the actions covered by this Pre-Annexation Development Agreement, and on February 12, 2010, issued a Mitigated Determination of Non-Significance ("**MDNS**"). Site-specific sensitive areas information was included in the information reviewed by the **City** as part of the State Environmental Policy Act documents that contained sufficient information for the **City** to evaluate compliance with the provisions of Snoqualmie Municipal Code ("SMC") 19.12.180(F)(4) for the proposed alteration of the sensitive area buffers for construction of the **Substation Area**, transmission lines, and associated facilities.

N. The **City** has determined that a reduced scope **AIP**, as required by Element 8 of the Snoqualmie Vicinity Comprehensive Plan, is appropriate to address only requirements for development of the **Substation Area** and transmission lines and to ensure adequate SE Douglas Street Right-of-Way for access and extension of utilities to the remainder of the **Annexation Area** beyond the **Substation Area** and to adjacent properties, and to defer additional planning normally contained in an annexation implementation plan until future development is proposed. A public hearing on the **AIP** was held by the City of Snoqualmie Planning Commission on March 1, 2010. The Planning Commission accepted public comment on the **AIP** until March 8, 2010. The Planning Commission conducted its deliberations on the **AIP** on March 1, 2010, April 5, 2010 and May 3, 2010 and recommended approval of the **AIP** to the City Council on May 3, 2010. The City Council approved the **AIP** on June 28, 2010.

O. On May 24, 2010 and June 28, 2010, the City Council held public hearings on the pre-annexation zoning ordinance, as required by RCW 35A.14.340. On June 14, 2010 the **City** held a public hearing on this Pre-Annexation Development Agreement, as required by RCW 36.70B.200. On June 28, 2010, the **City** held a public hearing on the annexation, as required by chapter 35A.14 RCW.

P. This Pre-Annexation Development Agreement is intended to be a development agreement pursuant to the authority of RCW 36.70B.170 – 210. **PSE** and the **City** intend by this Pre-Annexation Development Agreement to define the development standards and mitigations, as defined in RCW 36.70B.170(3) relating to the development of the **Substation Area** and the associated transmission lines, that will apply to the **PSE Property** upon annexation of the **Annexation Area,** including portions of the **PSE Property** that are not being annexed to the **City** at this time. This Pre-Annexation Development Agreement is not intended to authorize development or construction of any uses of the property other than the

3. ASSUMPTION OF BONDED INDEBTEDNESS

Upon the effective date of the annexation ordinance, the **Annexation Area** shall be subject to a proportional share of existing **City** bonded indebtedness.

4. USES.

Upon the effective date of the annexation ordinance described in Section 2 of this Pre-Annexation Development Agreement, the following agreements shall apply to uses on the **PSE Property**.

4.1 Substation Area. Development of the site shall generally be guided by the **Substation Site Development Plan** attached to the Pre-Annexation Development Agreement as **Exhibit 7** *(Substation Site Development Plan)* incorporated herein by this reference, and shall be limited to use as an electrical substation, transmission and distribution lines, and related appurtenances. No residential, commercial, or other development of the site outside of substation and transmission line-related uses shall be permitted on the **Substation Area**. Site development and construction of any concrete foundations in the **Substation Area** shall be in substantial conformance with the **Substation Site Development Plan** and subject to conditions imposed by applicable development permits for the **Substation Area** construction. Subject to applicable development permits, **PSE** shall be entitled to remove and maintain vegetation within those portions of the **Substation Area** and transmission line corridors consistent with the vegetation standards and covenants described in Section 6.8 below.

4.2 Line Corridor Area. The area identified as the **Line Corridor Area** on **Exhibit 5** shall be limited to construction and maintenance of transmission and distribution lines, poles, and related appurtenances and the access and vegetative maintenance required for such lines as provided in this Pre-Annexation Development Agreement. Vegetation removal, maintenance and replacement shall be consistent with the standards and covenants described in Section 6.8 below.

4.3 Future Development Area. In consideration of being permitted to do a reduced-scope **AIP** addressing only development of the **Substation Area** and transmission lines, **PSE** hereby covenants for itself and for its successors and assigns that it will not submit any applications for any subdivision, short subdivision, utility connections, construction or other development of the **Future Development Area** on Parcel No. 3624079102 shown on **Exhibit 6** until the **City** has reviewed and approved a planning document functionally equivalent to a full-scope **AIP** for the **Future Development Area**, together with that additional portion of the Snoqualmie Hills Planning Area, as determined by the **City**, for which circulation (roads and trails), utilities, land uses, and recreational lands and facilities should be planned in an integrated fashion to ensure compliance with the goals and policies of the Snoqualmie Vicinity Comprehensive Plan.

within the Business Park. The parties acknowledge that the extension of the south sidewalk will result in removal of some of the existing landscaping installed within that area.

6.1.1 Segment 1 Specifications. The following specifications shall apply to Segment 1 of the **SE Douglas Street Extension**, as shown on **Exhibit 9**. All other relevant Snoqualmie Ridge II Development standards for road construction, marking, and signage not specified below shall also apply:

6.1.1.1 Right-of-Way Width. Sixty (60) feet.

6.1.1.2 Travel Lanes. Two eleven (11)-foot travel lanes, plus eighteen (18) inches of curb and gutter (per Snoqualmie Ridge II Development Standard #2.08) on each side for a total of twenty-five (25) feet back-of-curb to back-of-curb.

6.1.1.3 Centerline Radius: Three hundred (300) feet.

6.1.1.4 Parking: None on either side.

6.1.1.5 Planter Strips, Street Trees, Tree Planting, Irrigation Specifications, and Street Lights: Ten (10)-foot planter strip on each side, not constructed until development of the **Future Development Area** by developers of that area or areas to the east. Street trees, tree planting, irrigation specifications, and street lights shall meet whatever standard for street trees, tree planting, irrigation, and street lights that may have been adopted by the **City** prior to or as part of the **AIP** for the **Future Development Area** and/or additional areas to the east.

6.1.1.6 Sidewalks: Six (6)-foot concrete sidewalk on each side, not constructed until development of the **Future Development Area** and/or additional areas to the east by developers of those areas.

6.1.2 Segment 2 Specifications: The following specifications shall apply to Segment 2, as shown on **Exhibit 9**. All other relevant Snoqualmie Ridge II Development standards for road construction, marking, and signage not specified below shall also apply:

6.1.2.1 Right-of-Way Width: Forty (40) feet.

6.1.2.2 Travel Lanes: Two eleven (11)-foot travel lanes, plus eighteen (18) inches of curb and gutter (per Snoqualmie Ridge II Development Standard #2.08) on each side for a total of twenty-five (25) feet back-of-curb to back-of-curb.

6.1.2.3 Centerline Radius: Three hundred (300) feet.

6.1.2.4 Parking: None on either side.

the **AIP** for future development in the subarea. Alternatively, and subject to future planning and annexation as a prerequisite, a property owner easterly of the **Future Development Area** in Parcel No. 3624079102 may extend sewer along SE Douglas Street to provide service to their property. If more than one owner is proposing future residential development at the same time, then the **City** will consider an appropriate pro-rata contribution to these sanitary sewer extension improvements by all such parties through a mechanism such as a cost-sharing agreement, or latecomer's agreement, or other legal method to provide for potential reimbursement of costs associated with the extension of the sewer service.

6.6 Restrictions Regarding 356th Avenue SE. If agreed to by the owners of the private 356th Avenue SE easement within two years of this Agreement, **PSE** shall construct a manually-operated gate across 356th Avenue SE where it intersects the **SE Douglas Street Extension** and shall provide all owners holding private rights of access across 356th Avenue SE with keys to use the gate. **PSE** shall not use 356th Avenue SE located south of the **SE Douglas Street Extension** for **Substation Area** construction access, except for that portion located on **PSE**-owned property. This condition is not intended to restrict **PSE** from using 356th Avenue SE for access for construction, installation, and maintenance of other utility infrastructure, such as the transmission lines, consistent with the terms of the existing easement.

6.7 Easement for City Trail Corridor. PSE agrees to convey a twenty (20)- foot wide trail easement running generally east and west across the **Annexation Area** to allow for future connection of the **City**'s trail system between the existing soft-surface Snoqualmie Ridge perimeter trail and other pedestrian trail corridors that will be identified as part of the **AIP** for future development in the subarea. This trail easement will be located as part of that **AIP** and will be dedicated to the **City** as a condition of that future development.

6.8 Covenants and Restrictions on Vegetation Removal. Vegetation clearing within the steep slope and stream buffer areas located in King County is an allowed alteration per KCC 21A.24.045(C), but is subject to a clearing and grading permit from King County. According to SMC §19.12.030(c), the **City** Hearing Examiner may grant a **PAUE** to permit utilities in a wetland, stream or associated buffers if the Hearing Examiner determines there is no practical alternative to the proposed utility development with less impact to sensitive area and the proposal minimizes impacts to the sensitive areas and buffers. Nothing in this Pre-Annexation Development Agreement shall be interpreted to predetermine the outcome of that **PAUE** review process, but instead, is intended to impose restrictions on those areas that should be imposed if that **PAUE** is approved. In the event there are conflicting provisions between any conditions imposed during the **PAUE** review process and this Pre-Annexation Development Agreement, then the provisions of the **PAUE** shall apply. This Pre-Annexation Development Agreement provides for those areas shown on **Exhibit 8** as wetland, stream, wetland buffer, and stream buffer areas to be protected by recording a vegetation covenant substantially in the form as shown in **Exhibit 12** (*Covenant and Easement)*, to preserve the wetland, stream, and rural area buffering functions in accordance with **City** policies and regulations. That covenant specifies the type of vegetation removal and maintenance that is permitted in these areas to permit electrical utility operation, while also providing buffer

9.10 Recording. The parties agree that a copy of this Pre-Annexation Development Agreement, or a Memorandum of this Pre-Annexation Development Agreement, may be recorded against the properties affected.

EXECUTED the day and year first above-written.

CITY OF SNOQUALMIE

Matt Larson, Mayor

PUGET SOUND ENERGY

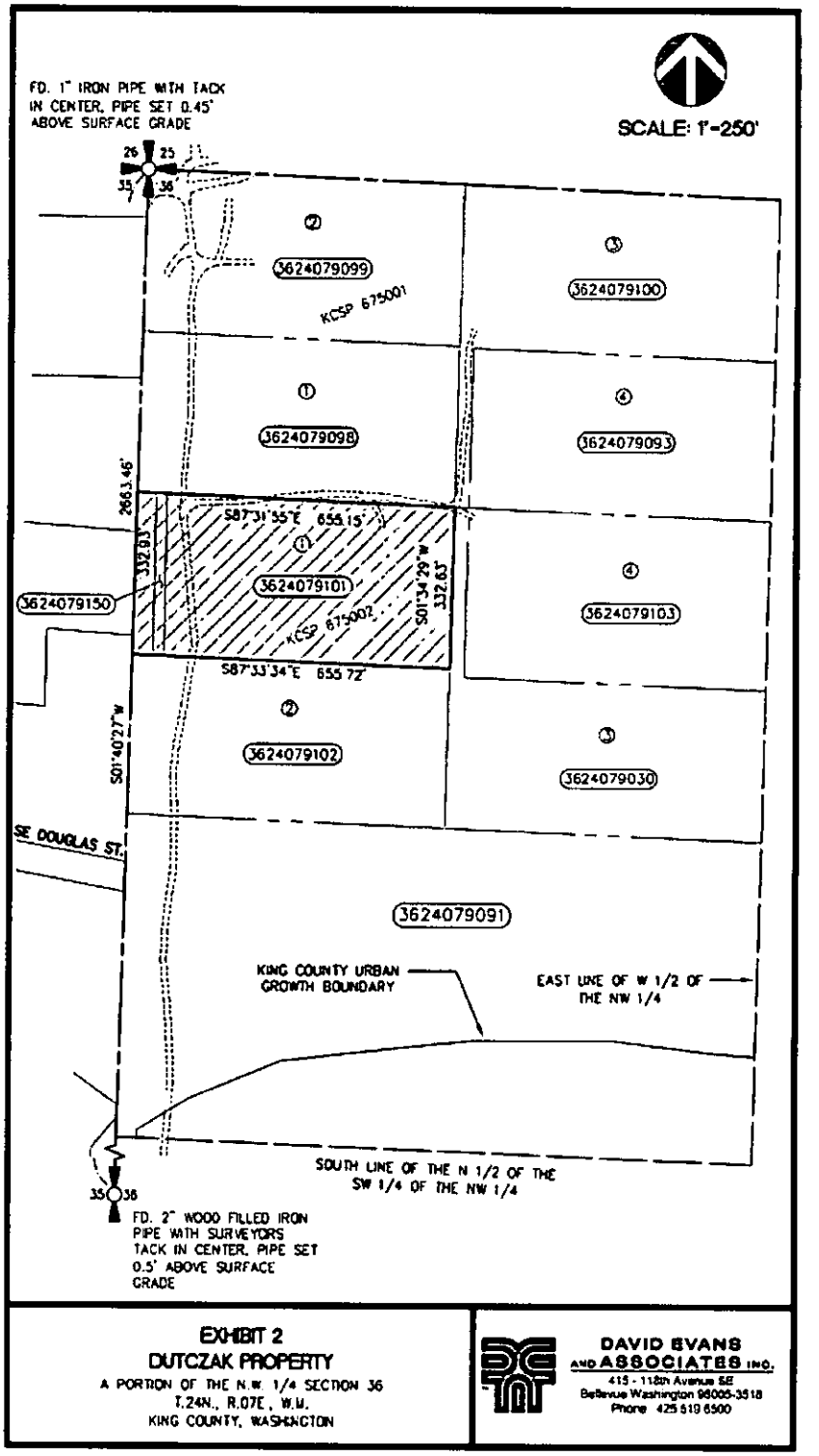
By:
Name: ROGER S. MCNULTY
Title: DIRECTOR CORP. FACILITIES
1-27-11

Attest:

Jodi Warren
City Clerk

Approved as to Form:

Patrick B. Anderson
City Attorney


FD. 1" IRON PIPE WITH TACK IN CENTER, PIPE SET 0.45' ABOVE SURFACE GRADE
SCALE: 1"=250'
26
25
35
36
3624079099
KCSP 675001
3624079100
3624079098
3624079093
2663.46'
332.63'
S87°31'55"E 655.15'
3624079101
KCSP 675002
S01°34'29"W 332.63'
3624079150
3624079103
S87°33'34"E 655.72'
S01°40'27"W
3624079102
3624079030
SE DOUGLAS ST.
3624079091
KING COUNTY URBAN GROWTH BOUNDARY
EAST LINE OF W 1/2 OF THE NW 1/4
SOUTH LINE OF THE N 1/2 OF THE SW 1/4 OF THE NW 1/4
FD. 2" WOOD FILLED IRON PIPE WITH SURVEYORS TACK IN CENTER, PIPE SET 0.5' ABOVE SURFACE GRADE
EXHIBIT 2
DUTCZAK PROPERTY
A PORTION OF THE N.W. 1/4 SECTION 36
T.24N., R.07E., W.M.
KING COUNTY, WASHINGTON
DAVID EVANS AND ASSOCIATES INC.
415 - 118th Avenue SE
Bellevue Washington 98005-3518
Phone 425 519 6500

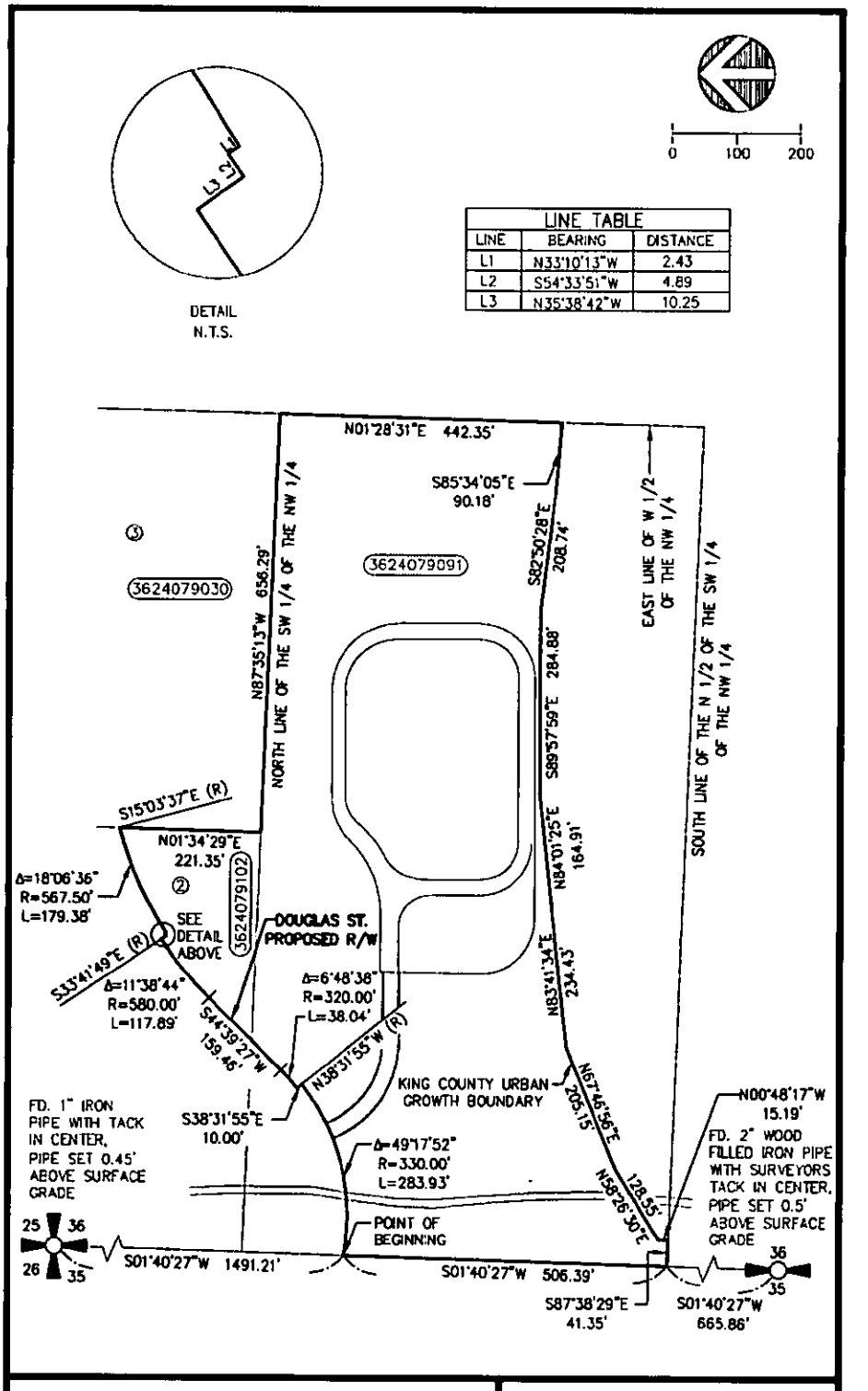
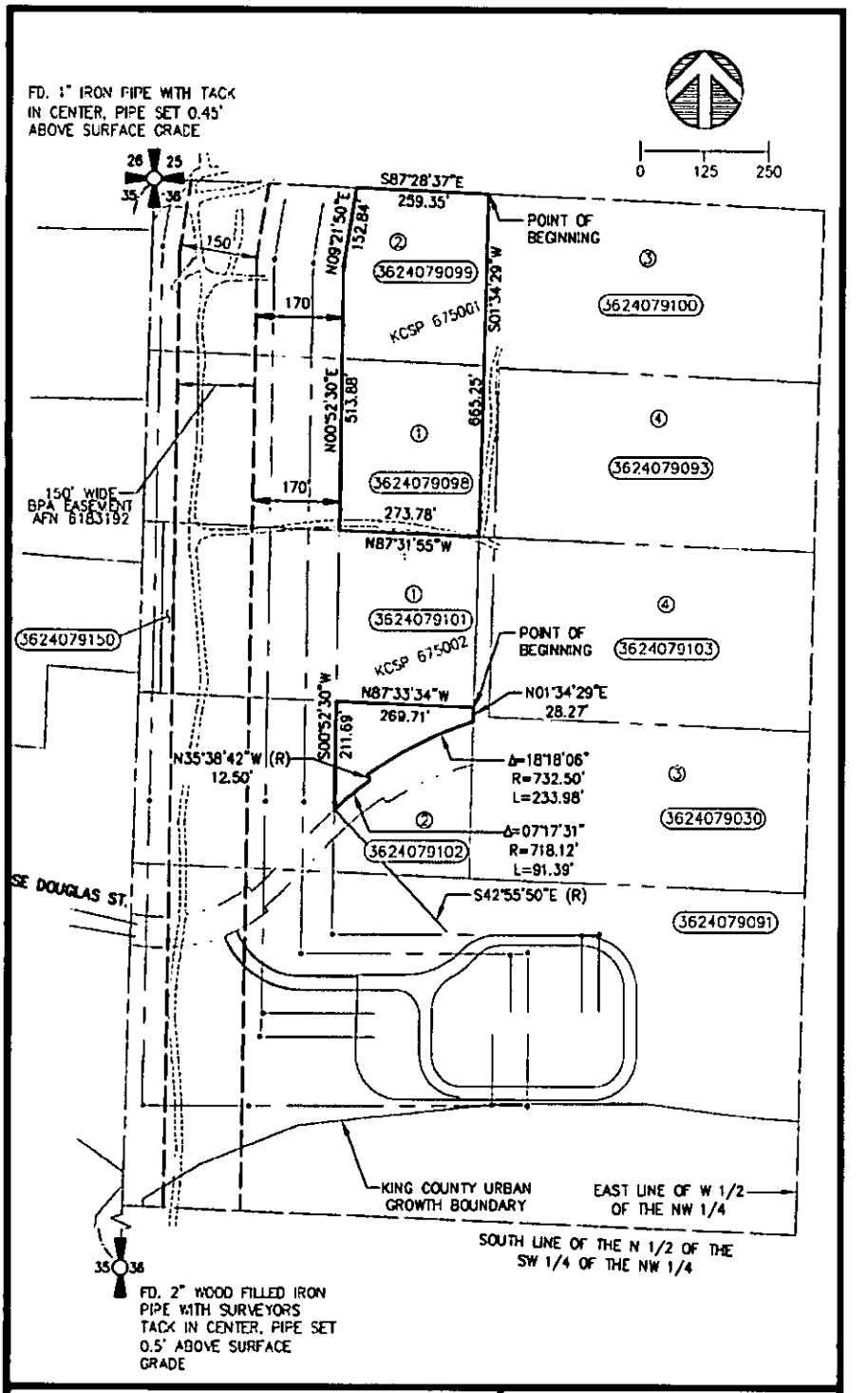
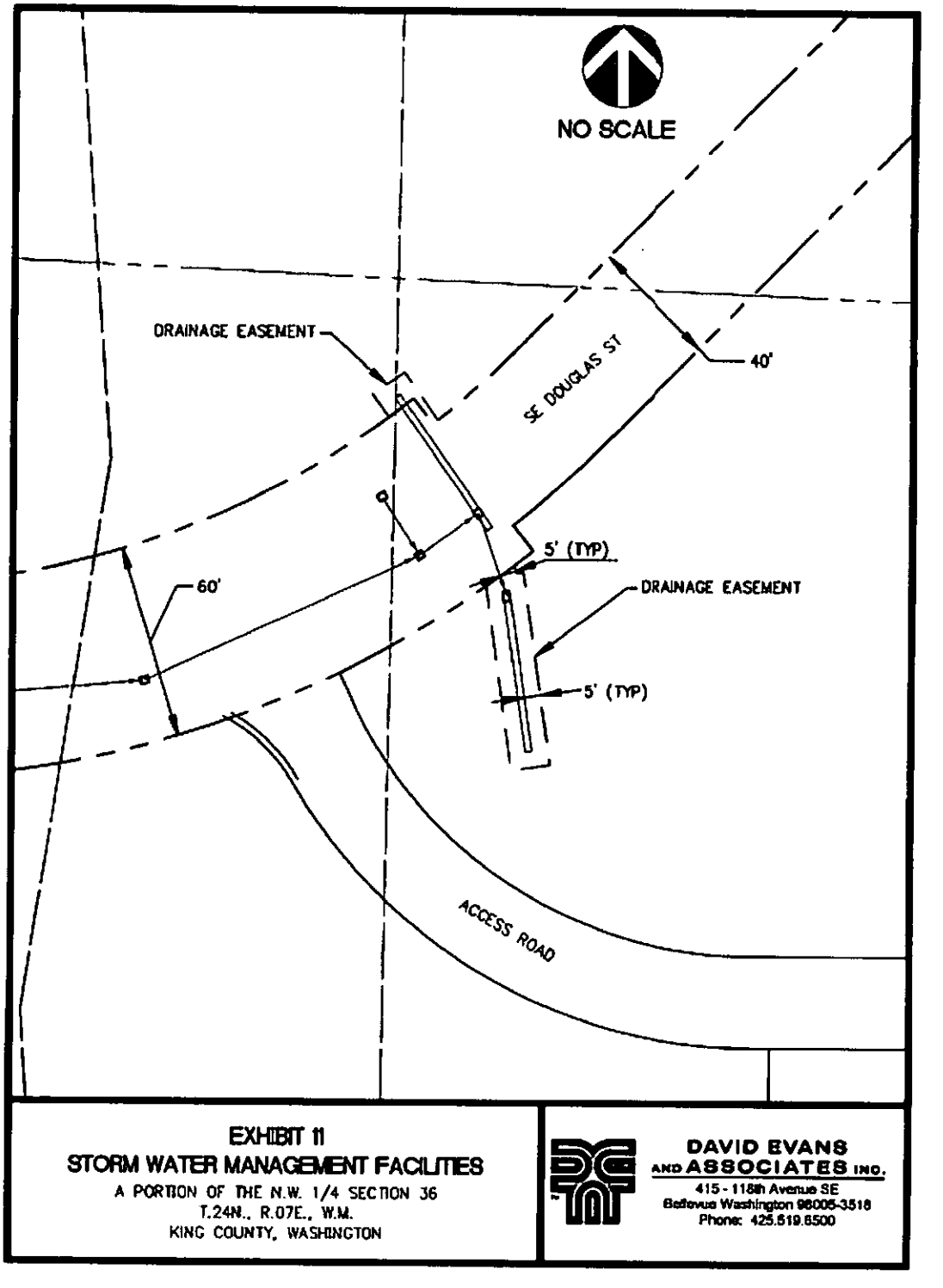


EXHIBIT 4
SUBSTATION AREA LEGAL DESCRIPTION
A PORTION OF THE N.W. 1/4 SECTION 36
T.24N., R.07E., W.M.
KING COUNTY, WASHINGTON

DAVID EVANS AND ASSOCIATES INC.
415 - 118th Avenue SE
Bellevue Washington 98005-3518
Phone: 425.519.6500


FD. 1" IRON PIPE WITH TACK IN CENTER, PIPE SET 0.45' ABOVE SURFACE GRADE
0 125 250
S87°28'37"E
259.35'
POINT OF BEGINNING
N09°21'50"E
132.84'
3624079099
KCSP 675001
S01°34'29"W
3624079100
150'
170'
N00°52'30"E
513.88'
665.25'
3624079093
3624079098
150' WIDE BPA EASEMENT AFN 6183192
273.78'
N87°31'55"W
3624079101
3624079150
POINT OF BEGINNING
3624079103
KCSP 675002
N87°33'34"W
269.71'
N01°34'29"E
28.27'
S00°52'30"W
211.69'
N35°38'42"W (R)
12.50'
Δ=18°18'06"
R=732.50'
L=233.98'
3624079030
Δ=07°17'31"
R=718.12'
L=91.39'
3624079102
SE DOUGLAS ST.
S42°55'50"E (R)
3624079091
KING COUNTY URBAN GROWTH BOUNDARY
EAST LINE OF W 1/2 OF THE NW 1/4
SOUTH LINE OF THE N 1/2 OF THE SW 1/4 OF THE NW 1/4
FD. 2" WOOD FILLED IRON PIPE WITH SURVEYORS TACK IN CENTER, PIPE SET 0.5' ABOVE SURFACE GRADE
EXHIBIT 6
FUTURE DEVELOPMENT AREA LEGAL DESCRIPTION
A PORTION OF THE N.W. 1/4 SECTION 36
T.24N., R.07E., W.M.
KING COUNTY, WASHINGTON
DAVID EVANS AND ASSOCIATES INC.
415 - 118th Avenue SE
Bellevue Washington 98005-3518
Phone: 425.519.6500


NO SCALE
DRAINAGE EASEMENT
SE DOUGLAS ST
40'
5' (TYP)
DRAINAGE EASEMENT
60'
5' (TYP)
ACCESS ROAD
EXHIBIT 11
STORM WATER MANAGEMENT FACILITIES
A PORTION OF THE N.W. 1/4 SECTION 36
T.24N., R.07E., W.M.
KING COUNTY, WASHINGTON
DAVID EVANS
AND ASSOCIATES INC.
415 - 118th Avenue SE
Bellevue Washington 98005-3518
Phone: 425.519.6500

the date set forth with its signature below.

PUGET SOUND ENERGY, INC.

_____
By: _____
Its: _____
Date: _____

STATE OF WASHINGTON)
: ss.
COUNTY OF _____)

I certify that I know or have satisfactory evidence that _____ is the person who appeared before me, and s/he acknowledged that s/he signed this instrument, on oath stated that s/he was authorized to execute the instrument and acknowledged it as the _____ of PUGET SOUND ENERGY, INC., a corporation, to be the free and voluntary act of such corporation for the uses and purposes mentioned in the instrument.

Dated this ____ day of _____, 2010.

_____
[Signature of Notary]

_____
[Print Name of Notary]
Notary Public in and for the State of Washington,
residing at _____.
My commission expires: _____.

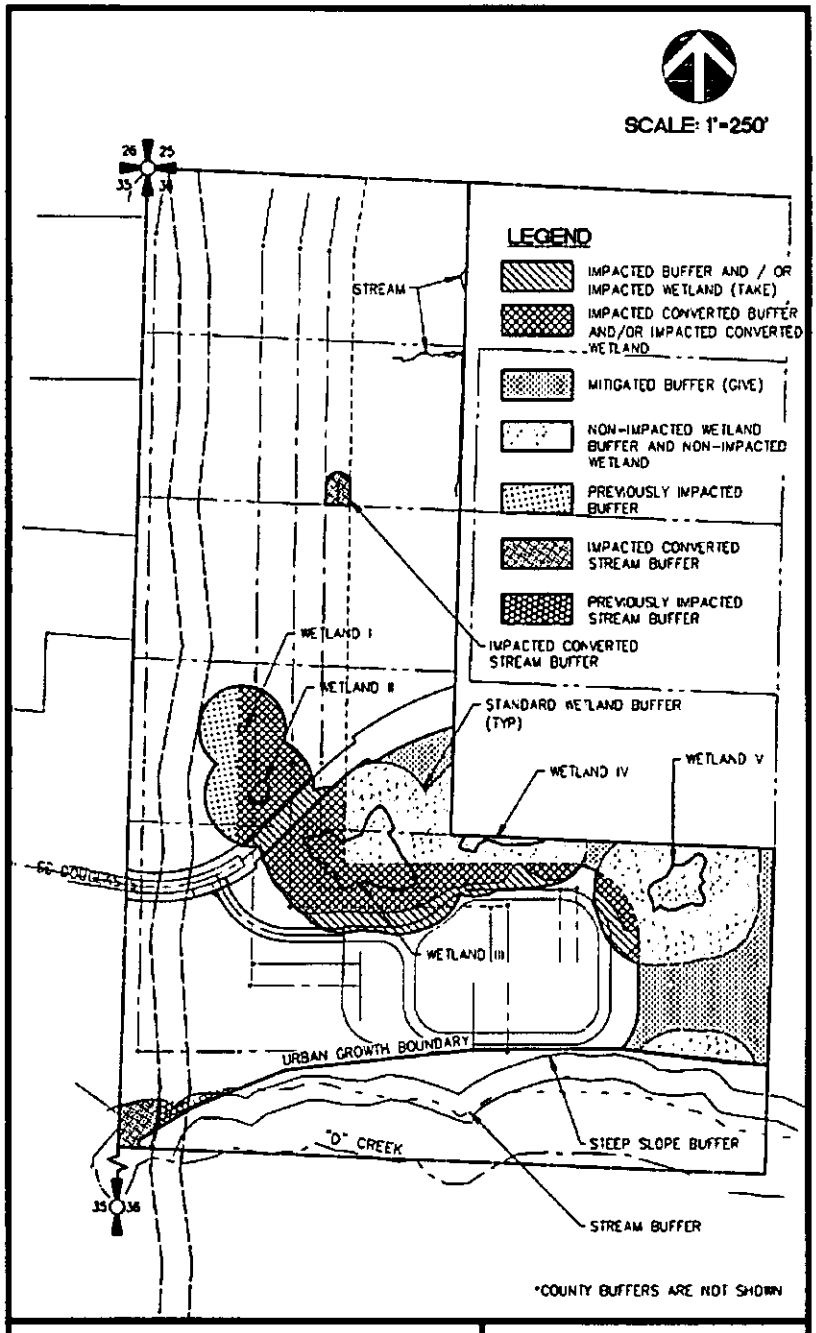


EXHIBIT D
WETLAND AND STREAM BUFFER AREA
A PORTION OF THE N.W. 1/4 SECTION 36
T.24N., R.07E., W.M.
KING COUNTY, WASHINGTON

DAVID EVANS AND ASSOCIATES INC.
415 - 118th Avenue SE
Bellevue Washington 98005-3518
Phone 425 519 6500

EXHIBIT E
VEGETATION MAINTENANCE AREA LEGAL DESCRIPTION

THAT PORTION OF LOTS 1 AND 2 OF KING COUNTY SHORT PLAT NUMBER 675001, AS FILED UNDER RECORDING NUMBER 7510100716, RECORDS OF KING COUNTY, WASHINGTON, DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHWEST CORNER OF SECTION 36, TOWNSHIP 24 NORTH, RANGE 7 EAST, W.M., KING COUNTY, WASHINGTON, A 1" IRON PIPE WITH A TACK IN PLUG FOUND IN PLACE, FROM WHICH THE WEST QUARTER CORNER OF SAID SECTION, A 2" IRON PIPE WITH TACK AND PLUG FOUND IN PLACE BEARS SOUTH 01°40'27" WEST, 2,663.46 FEET DISTANT;
THENCE SOUTH 87°28'37" EAST ALONG THE NORTH LINE OF SAID SECTION, A DISTANCE OF 72.36 FEET TO THE WESTERLY MARGIN OF A BONNEVILLE POWER ADMINISTRATION RIGHT OF WAY AS ESTABLISHED BY INSTRUMENT RECORDED UNDER AUDITORS FILE NO. 6183192, RECORDS OF SAID COUNTY;
THENCE SOUTH 09°21'50" WEST ALONG SAID WESTERLY MARGIN A DISTANCE OF 138.20 FEET;
THENCE SOUTH 00°52'30" WEST ALONG SAID WESTERLY MARGIN A DISTANCE OF 528.73 FEET TO THE SOUTH LINE OF SAID LOT 1;
THENCE NORTH 87°31'55" WEST ALONG SAID SOUTH LINE A DISTANCE OF 61.24 FEET TO THE WEST LINE OF SECTION 36;
THENCE NORTH 01°40'27" EAST ALONG SAID WEST LINE A DISTANCE OF 665.86 FEET TO THE NORTHWEST CORNER OF SAID SECTION AND THE **POINT OF BEGINNING**;

TOGETHER WITH:
THAT PORTION OF LOTS 1 AND 2 OF KING COUNTY SHORT PLAT NUMBER 675001, AS FILED UNDER RECORDING NUMBER 7510100716, RECORDS OF KING COUNTY, WASHINGTON, DESCRIBED AS FOLLOWS:

COMMENCING AT THE NORTHWEST CORNER OF SAID SECTION;
THENCE SOUTH 87°28'37" EAST ALONG THE NORTH LINE OF SAID SECTION, A DISTANCE OF 223.44 FEET TO THE EASTERLY MARGIN OF A BONNEVILLE POWER ADMINISTRATION RIGHT OF WAY AND THE **POINT OF BEGINNING**;
THENCE CONTINUING SOUTH 87°28'37" EAST ALONG SAID NORTH LINE A DISTANCE OF 221.58 FEET TO A POINT LYING 220.00 FEET EASTERLY OF SAID EASTERLY MARGIN;
THENCE SOUTH 09°21'50" WEST ALONG A LINE PARALLEL WITH AND 220.00 FEET EASTERLY OF SAID EASTERLY MARGIN A DISTANCE OF 155.13 FEET;
THENCE SOUTH 00°52'30" WEST ALONG SAID PARALLEL LINE A DISTANCE OF 511.56 FEET TO THE SOUTH LINE OF SAID LOT 1;

a. **Substation Protection Area.** Taller growing plant species that might endanger the substation or fence and lower growing species that may inhibit the security of the facility (i.e., plants that grow in excess of approximately 4 feet in mature height) will be removed to, at, or near ground level (provided that stumps and root structure shall not be removed unless removal is required to avoid future growth to heights that will endanger the substation or fence).

b. **Planned Transmission Lines.** Vegetation in this area will be managed and maintained as described for all **Vegetation Maintenance Areas** above.

c. **Potential Future Transmission Lines.** (Relocation of Tanner line currently existing in **BPA Easement** & a new line east of the **BPA Easement** to the south of the **Substation).** Taller growing plant species that are currently less than 25 feet in height will be retained within this **Vegetation Maintenance Area** until such time (if ever) that these **Potential Future Transmission Lines** are constructed. This area will be managed to allow and encourage lower-growing native species to fill in, such that if or when the taller species need to be removed to permit construction of the **Potential Future Transmission Lines**, lower-growing species will be established. At the time of any such future construction, the vegetation removal, replacement, and maintenance shall be as described above for the **Planned Transmission Lines** construction.

d. **Wetland & Stream and Related Buffers** (*see* **Exhibit D**). The area will be replanted in accordance with the Wetland Mitigation Plan. A copy of the Wetland Mitigation Plan dated October 2009 and the Addendum thereto dated February 2010 is **Exhibit 13** to the Pre-Annexation Agreement between **PSE** and the **City** dated _____, and is available for review at the **City** of Snoqualmie Planning Department Offices. If the **City** Hearing Examiner, or King County DDES impose wetland or stream buffer mitigation requirements that are different than those contained in **Exhibit 13** of the Pre-Annexation Development Agreement, then, pursuant to the terms of the Pre-Annexation Development Agreement, those different conditions shall apply.

e. Where the **Vegetation Maintenance Area** is coincident with the **Perimeter Buffer** (*see* **Exhibit C**), areas being maintained to provide clearance for **Planned Transmission Lines** will be enhanced with additional plantings of lower-growing plant species from the list of native trees that will not grow above the 15 and 25-foot height limits specified for transmission lines (e.g., vine maples, serviceberry, and native Dogwood) and native shrubs and native groundcovers listed in section C.5 below. Vegetation in other areas will not be removed until necessary to provide clearance for **Potential Future Transmission Lines**. If this area is cleared in the future, it will be enhanced with planting in the same manner as the **Planned Transmission Lines** to support perimeter buffer screening functions. **PSE** shall be responsible for maintenance and replacing any plants that do not survive the initial planting in this area for a period of three (3) years from the date of planting and shall be responsible for replacing any trees lost due to blow down or slope failure for a period of ten (10) years from the date this area is initially cleared for construction of the Initial or **Potential Future Transmission Lines**.

5. Native Species List and Specifications: Replacement plantings required pursuant to this **Exhibit H** shall include a mixture of native deciduous and coniferous trees, shrubs and groundcovers, identified below, or as otherwise specifically approved by the **City**'s arborist. The specific type, mix, size, and spacing of species shall be:

   a. Native trees include a mixture of Douglas Fir (a combination of 5'-6' and 8'-10' B&B or container, depending on number and spacing proposed), Western Red Cedar (a combination of 5'-6' and 8'-10' B&B or container, depending on number and spacing proposed), Western Hemlock (a combination of 5'-6' and 8'-10' B&B or container, depending on number and

EXHIBIT H-5
POTENTIAL FUTURE CLEARING LEGAL DESCRIPTION

THAT PORTION OF LOTS 1 AND 2 KING COUNTY SHORT PLAT NUMBER 675001, AS FILED UNDER RECORDING NUMBER 7510100716, RECORDS OF KING COUNTY, WASHINGTON, DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHWEST CORNER OF SAID SECTION 36 A 1" IRON PIPE WITH A TACK IN PLUG FOUND IN PLACE, FROM WHICH THE WEST QUARTER CORNER OF SAID SECTION, A 2" IRON PIPE WITH TACK AND PLUG FOUND IN PLACE BEARS SOUTH 01°40'27" WEST, 2,663.46 FEET DISTANT;

THENCE SOUTH 87°28'37" EAST ALONG THE NORTH LINE OF SAID SECTION, A DISTANCE OF 26.94 FEET TO THE WESTERLY MARGIN OF A BONNEVILLE POWER ADMINISTRATION RIGHT OF WAY AS ESTABLISHED BY INSTRUMENT FILED UNDER RECORDING NO. 20010709000786, RECORDS OF SAID COUNTY;
THENCE SOUTH 00°52'30" WEST ALONG SAID WESTERLY MARGIN A DISTANCE OF 333.02 FEET TO THE SOUTH LINE OF SAID LOT 2;
THENCE SOUTH 87°30'16" EAST ALONG SAID SOUTH LINE A DISTANCE OF 2.50 FEET TO THE WESTERLY MARGIN OF A BONNEVILLE POWER ADMINISTRATION RIGHT OF WAY AS ESTABLISHED BY INSTRUMENT FILED UNDER RECORDING NO. 20010410000793, RECORDS OF SAID COUNTY;
THENCE SOUTH 00°52'30" WEST ALONG SAID WESTERLY MARGIN A DISTANCE OF 333.01 FEET TO THE SOUTH LINE OF SAID LOT 1;
THENCE NORTH 87°31'55" WEST ALONG SAID SOUTH LINE A DISTANCE OF 38.73 FEET TO THE WEST LINE SAID SECTION;
THENCE NORTH 01°40'27" EAST ALONG SAID WEST LINE A DISTANCE OF 665.86 FEET TO THE NORTHWEST CORNER OF SAID SECTION AND THE **POINT OF BEGINNING**;

TOGETHER WITH:
THAT PORTION OF THE NORTH HALF OF THE SOUTHWEST QUARTER OF THE NORTHWEST QUARTER OF SECTION 36, TOWNSHIP 24 NORTH, RANGE 7 EAST, W.M., KING COUNTY, WASHINGTON, AND THAT PORTION OF LOT 2 KING COUNTY SHORT PLAT NUMBER 675002, AS FILED UNDER RECORDING NUMBER 7510100717 RECORDS OF SAID COUNTY DESCRIBED AS FOLLOWS:

COMMENCING AT THE NORTHWEST CORNER OF SAID SECTION, A 1" IRON PIPE WITH A TACK IN PLUG FOUND IN PLACE, FROM WHICH THE WEST QUARTER CORNER OF SAID SECTION, A 2" IRON PIPE WITH TACK AND